PCD-2019-124

IN THE COURT OF CRIMINAL APPEALS FOR THE STATE OF OKLAHOMA

SHAUN MICHAEL BOSSE,
Petitioner,

v.) No. PCD-2019-124

THE STATE OF OKLAHOMA,
Respondent.

BRIEF IN SUPPORT OF MOTION FOR FURTHER STAY OF THE MANDATE BASED ON PENDING PETITION FOR REHEARING OR, ALTERNATIVELY, FOR GOOD CAUSE SHOWN

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Motion for Further Stay of the Mandate

COMES NOW, the State of Oklahoma, by and through Attorney General Mike Hunter, and pursuant to Rule 3.14(3), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011), respectfully moves this Court to further stay the mandate in this case. In light of the State's contemporaneous filings, its Motion for Leave to File Petition for Rehearing and its Petition for Rehearing, the State submits that the mandate in this case should automatically be stayed pursuant to Rule 3.15(3), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (201 1). Alternatively, assuming the State is not entitled to an automatic stay of the mandate based on its petition for rehearing, the State demonstrates 'good cause" for a further stay based on its petition for rehearing and its planned filing, if necessary, of a Petition for Writ of Certiorari in the United States Supreme Court. Rule 3.15(3), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011). Pursuant to Rule 3.10, Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011), the State has filed a brief in support of this Motion that is being filed simultaneously herewith that more fully explains and supports the State's position. WHEREFORE, for the reasons contained within the State's brief in support, the State respectfully requests this Court further stay the mandate for the pendency of the State's Petition for Rehearing and, if necessary, Certiorari Petition. It is the State's understanding that the mandate will remain stayed until this motion is ruled upon.

COMES NOW, the State of Oklahoma, by and through Attorney General Mike Hunter, and in support of its Motion for Further Stay of the Mandate Based on Pending Petition for Rehearing or, Alternatively, for Good Cause Shown, filed pursuant to Rule 3.14(B), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011), files this brief in support pursuant to Rule 3.10, Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011). In light of the State's contemporaneous filings, its Motion for Leave to File Petition for Rehearing and its Petition for Rehearing, the State submits that the mandate in this case should automatically be stayed pursuant to Rule 3.15(B), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (201 1). Alternatively, assuming the State is not entitled to an automatic stay of the mandate based on its petition for rehearing, the State demonstrates "good cause" for a further stay based on its petition for rehearing and its planned filing, if necessary, of a Petition for Writ of Certiorari in the United States Supreme Court. Rule 3.15(B), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011). In support of this request, the State shows as follows. The State respectfully requests this Court further stay the mandate for the pendency of the State's Petition for Rehearing and, if necessary, Certiorari Petition for the reasons herein.

I. THE MANDATE SHOULD BE AUTOMATICALLY STAYED BASED ON THE STATE'S PETITION FOR REHEARING.

In issuing its decision in this case, this Court stayed the mandate for twenty days. Bosse v. State, 2021 OK CR 3, ¶ 30, P.3d , . Ordinarily, the stay of the mandate is

automatically extended if a petition for rehearing is filed, pending the disposition of that petition. See Rule 3.15(B), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011) ("If a petition for a rehearing is timely filed after the filing of a decision, the mandate shall not issue until the disposition of the petition for rehearing . . . ."). Here, as shown in the State's contemporaneously filed Motion for Leave to File Petition for Rehearing, this Court has made this post-conviction appeal subject to Rule 3.15. Bosse, 2021 OK CR 3, ¶ 30, P.3d at . Accordingly, the State submits that it is entitled to an automatic further stay of the mandate pending this Court's resolution of its petition for rehearing pursuant to Rule 3.15(B).

II. ALTERNATIVELY, THE MANDATE SHOULD BE STAYED FOR GOOD CAUSE SHOWN.

Alternatively, assuming this Court concludes that the State is not automatically entitled to further stay of the mandate, Rule 3.15(B) provides for a further stay where "good cause" is "shown." Rule 3.15(B), Rules of the Oklahoma Court of Criminal Appeals, Title 22, Ch. 18, App. (2011) ("When the petition for rehearing has been decided, the mandate shall issue forthwith. The mandate shall not be recalled, nor stayed pending an appeal to any other court, • . . unless a majority of the Court, for good cause shown, recalls or stays the mandate."). As shown below, the State has good cause because it has filed a petition for rehearing and weighty interests compel staying the mandate until these matters have been fully litigated.

The interests of justice counsel in favor of staying the mandate in this case until the State's petition for rehearing, and possible certiorari petition are resolved. As predicted, the impact of McGirt on this State is tremendous, with crime victims largely bearing the costs. See Bosse, 2021 OK CR 3, ¶j 6, 8, P.3d at (Hudson, J., concurring in results); see also McGirt t.'. Oklahoma, 140 S. Ct. 2452, 2482 (2020) (Roberts, C.J., dissenting) ("Across this vast area, the State's ability to prosecute serious crimes will be hobbled and decades of past convictions could well be thrown out. On top of that, the Court has profoundly destabilized the governance of eastern Oklahoma."). Prosecutors and law enforcement across the affected parts of the State are grappling with the myriad of complications that have arisen as thousands of cases, both old and new, change hands jurisdictionally. If nothing else, prosecutors and law enforcement need certainty regarding the state of the law post- McGirt. Issuing the mandate in this case—this Court's seminal post-McGirt precedent, as discussed in the Motion for Leave to File Petition for Rehearing—before the State has had the opportunity to fully litigate the issues involved will only exacerbate uncertainty regarding the state of the law.

The State's rehearing petition offers persuasive grounds for reconsideration of this Court's decision in this case—persuasive enough that good cause for stay of the mandate is shown. As demonstrated in the rehearing petition, in rejecting the State's concurrent jurisdiction and waiver arguments, this Court both "overlooked" arguments and authority offered by the State and reached a conclusion that is "in conflict" with Supreme Court authority and "express" statutory language, Rule 3. 14(B)(1)-(2), Rules of the Oklahoma

Court of Criminal Appeals, Title 22, Ch. 18, App. (2011). Furthermore, as explained in the Motion for Leave to File Petition for Rehearing, the stakes in this case are extraordinarily high. The State should be permitted to fully litigate the significant issues conclusively decided in Bosse, including this Court's rejection of the State's concurrent jurisdiction and waiver arguments, before mandate issues. The potentially meritorious issues raised in the rehearing petition, combined with the enormous interests at stake, provide good cause for further staying the mandate pending resolution of the rehearing petition. See Bosse, 2021 OK CR 3, ¶'J 6, 8, P.3d at (Hudson, J., concurring in results) ("All of this foreshadows a hugely destabilizing force to public safety in eastern Oklahoma… And the clock is running on whether the federal system can keep

. up with the large volume of new cases undoubtedly heading their way from state court.").

Moreover, in addition to the State's state law procedural arguments, the State's arguments also present an important question of federal law. The State's concurrent jurisdiction arguments, if they ultimately prevail, would have a substantial mitigating effect on the jurisdictional upset in the state. See Bosse, 2021 OK CR 3, ¶ 6, 8, P.3d at (Hudson, J., concurring in results) (noting "the growing number of cases. . . where non-Indian defendants are challenging their state convictions using McGirt because their victims were Indian" (emphasis in original)). As previously shown by the State, the Supreme Court has addressed this issue only in dicta (Petitioner's Proposition I in Light of the Supreme Court's Decision in McGirt v. Oklahoma, 140 S. Ct. 2452 (2020) at

15-16, filed August 4, 2020). This Court's decision has also created a conflict in interpreting Gonzalez v. Thaler, 565 U.S. 134 (2012), which this Court held to prohibit it from barring Indian Country jurisdictional claims, when McGirt itself repeatedly indicates that such claims can be barred (Petition for Rehearing at 9-11, filed March 31, 2021). And this Court's decision conflicts with United States v. Cotton, 535 U.S. 625 (2002), and multiple federal cases that rely on Cotton, by treating Indian Country jurisdictional claims as non-waivable subject matter jurisdiction claims that implicate the power of the trial court to adjudicate a case (Petition for Rehearing at 11-15, filed March 31, 2021). These federal issues present an opportunity for seeking a writ of certiorari, so the mandate should be stayed until certiorari is resolved or the opportunity to seek it has expired. See Post v. State, 1986 OK CR 52, ¶ 6, 717 P.2d 1151, 1152 (holding that, although "the petition for rehearing should be denied," "[b]ecause the Supreme Court has not addressed this precise issue, we agree that the mandate should be stayed" so that the State "may lodge a petition for writ of certiorari with the United States Supreme Court"); Murphy v. Royal, No. 07-7068 & No. 15-7041, Order (Nov. 16, 2017) (staying mandate "until the deadline passes for filing a certiorari petition in the Supreme Court" or if the court "receives notice the respondent has filed a petition the stay will continue until the Supreme Court's final disposition").

As a final matter, Petitioner would be hard-pressed to argue any prejudice from a further stay of the mandate. As Petitioner's counsel stated at the evidentiary hearing, dismissing the impact of this jurisdictional claim on the victims' family, "This case will

be brought in federal court. . . . And Mr. Bosse is not going anywhere. He's going to another prison. That's all that's going to happen." (Evidentiary Hearing Transcript at 22). Any claim of prejudice by Petitioner now would be disingenuous and should not prevent this Court from further staying the mandate. See Tiger v. State, 1995 OK CR 59, ¶ 5, 907 P.2d 1075, 1076 (refusing to recall the mandate where the recall would "prejudice the Petitioner").

CONCLUSION

For the above reasons, the State respectfully requests this Court further stay the mandate through the pendency of the State's Petition for Rehearing and, if necessary, Certiorari Petition.

March 31, 2021

Respectfully submitted,

/s/ Caroline E.J. Hunt
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Certificate of Service

On this ____ day of March, 2021, a true and correct copy of the foregoing was mailed to:

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An electronic signature is being used due to the current COVID-19 restrictions. A signed original can be provided to the Court upon request once restrictions are lifted.

/s/ Caroline E.J. Hunt
CAROLINE E.J. HUNT